

26STCV07228 26STCV07228

County: los-angeles

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Case Number: 26STCV07228 Hearing Date: September 2, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

YASER

GARMAKANI,

Plaintiff,

vs.

KAWASAKI

MOTORS CORP., U.S.A.,

Defendant.

Case No.:

26STCV07228

Hearing Date:

September 2, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT

KAWASAKI MOTORS CORP., U.S.A.'S MOTION TO SET ASIDE ENTRY OF DEFAULT

Background

On

March 5, 2026, Plaintiff Aser Garmakani ("Plaintiff") filed a Complaint against Defendant Kawasaki Motors Corp., U.S.A ("Kawasaki"), asserting two causes of action under the Song-Beverly Consumer Warranty Act for (1) breach of implied warranty of merchantability and (2) breach of express warranty.

The

Court Clerk entered Plaintiff's request for entry of default against Kawasaki on May 6, 2026.

Kawasaki

now moves for an order setting aside the default entered against it. Plaintiff did not file an opposition.

Legal

Standard

Code of Civil Procedure section 473, subdivision

(b) provides in pertinent

part as follows:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken... Notwithstanding any other requirements of this section, the court shall, whenever an application for

relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect."

"[T]he moving party has the burden of showing that the neglect leading to default was excusable." (Jackson v. Bank of Am. (1983) 141 Cal.App.3d 55, 58.) "[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds as stated in Tackett v. City of Huntington Beach (1994) 22 Cal.App.4th 60, 64].) Where the party in default moves promptly to seek relief, and no prejudice to the opposing party will result from setting aside the default, "very slight evidence will be required to justify a court in setting aside the default." (Id.) "While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, 'these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.'" (Kendall v. Barker (1988) 197 Cal.App.3d 619, 623, emphasis in original.)

For discretionary relief, "[t]he six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed. [Citation.] The six-month period runs from entry of default, not entry of judgment." (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.) When accompanied by an attorney declaration, the six-month clock for mandatory relief from an attorney mistake runs from the entry of default judgment. (Sugasawara v. Newland (1994) 27 Cal.App.4th 294, 296-297.)

Discussion

Kawasaki moves

under the mandatory attorney-fault provision of Code of Civil Procedure section 473, subdivision (b), to set aside the default taken against it on the grounds that it resulted from Kawasaki's counsel's excusable mistake, inadvertence, or neglect to timely respond to Plaintiff's Complaint.

In support of the instant motion, Kawasaki provides a declaration from its counsel attesting to his error. Counsel declares, inter alia, that "[o]n March 27, 2026, Defendant was served with the complaint in this matter ('Complaint'). It timely forwarded the Complaint to my office." (Lee Decl., ¶ 2.) However, "[d]ue to my mistake, inadvertence, or neglect, I failed to download the Complaint into the firm's document management system. As a result of this mistake, inadvertence, or neglect, the firm's automated calendaring system did not calendar Defendant's April 27, 2026, deadline to respond to the Complaint, and I failed to ensure a timely responsive pleading was filed." (Lee Decl., ¶ 3.) Thereafter, Kawasaki's counsel explains that "Defendant received Plaintiff's Request for Entry of Default and promptly forwarded it to my office." (Lee Decl., ¶ 4.) Kawasaki's counsel then "reviewed the docket to determine the status of the case. Through my mistake, inadvertence, or neglect, however, I failed to recognize that the Clerk had entered Defendant's default on May 6, 2026." (Lee Decl., ¶ 5.)

Kawasaki's counsel explains that "[b]elieving the Clerk had not entered a default against Defendant, I prepared and filed Defendant's Answer on May 12, 2026, and proceeded to litigate the matter. (Lee Decl., ¶ 6; Ex. A.) Counsel states he "finally learned of my mistake and that default had been entered against Defendant at the Case Management Conference on July 24, 2026." (Lee Decl., ¶ 7.)

Kawasaki's counsel further explains his mistake by attesting that "[t]his action is one of four substantially similar warranty actions in which David N. Barry represents plaintiffs against Defendant. In each of those actions, Defendant has been represented by Bowman and Brooke LLP, and me. Throughout these matters, Mr. Barry and I have communicated extensively regarding litigation, settlement, and case management. Despite this, before requesting entry of default, Mr. Barry did not contact me or any other Bowman and Brooke LLP personnel regarding the missed responsive pleading deadline. Nor did Mr. Barry notify me that he was going to be requesting default." (Lee Decl., ¶ 8.) "On June 2, 2026, notwithstanding the previously entered default, Plaintiff served Defendant with a Notice of Deposition and first set of written discovery," which Kawasaki's

counsel attaches “a true and correct copy of the email from Plaintiff serving the Notice of Deposition and first set of written discovery.” (Lee Decl., ¶ 9; Ex. B.) Thereafter, “[o]n June 12, 2026, Plaintiff continued litigating the action by serving a meet-and-confer letter concerning Defendant’s objections to the Notice of Deposition.” (Lee Decl., ¶ 10; Ex. C.)

Kawasaki’s counsel

explains that “[t]hroughout the period following the entry of default, Plaintiff’s conduct was generally consistent with an intent to litigate the matter on the merits. And at no point during this period did Plaintiff’s counsel advise Defendant or I that a default had previously been entered.” (Lee Decl., ¶ 11.) Counsel explains that “Defendant has been diligent in defending itself in this action. It attempted to file an Answer, has engaged in discovery in earnest, and appeared at the Case Management Conference. What is more, the moment it learned that default had been entered against it, it began working on this instant Application.” (Lee Decl., ¶ 12.) Counsel concludes, stating that, “[i]n sum, Defendant is not at fault for the failure to file a timely Answer. I am solely responsible for failing to timely file Defendant’s Answer to the Complaint in this case.” (Lee Decl., ¶ 13.)

Pursuant to the

declaration provided by Kawasaki’s counsel, it is clear that default was entered against Kawasaki on the grounds of inadvertence, mistake, and excusable neglect. Kawasaki’s counsel inadvertently did not add the Complaint to the firm’s automated calendaring system, so the deadline to respond was not properly calendared. Kawasaki demonstrates that the failure to respond was due to counsel’s mistake, and not Kawasaki. Thus, relief is mandatory. Additionally, Kawasaki’s counsel explains that Plaintiff served discovery on Kawasaki, even though Kawasaki was in default, so Kawasaki’s delay in filing the instant motion from the date of entry of default is reasonable due to Plaintiff’s inconsistent conduct. In light of the foregoing and Plaintiff’s failure to file an opposition, the Court finds that relief is required under Code of Civil Procedure section 473, subdivision (b).

Conclusion

Based on the

foregoing, Kawasaki’s motion to set aside entry of default is GRANTED. The Court vacates the entry of default entered against Kawasaki on May 6, 2026.

Kawasaki

is ordered to provide notice of this Order.

DATED: September 2, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court